

Mongolian Education Quality Reform Project

Indigenous People Planning Framework

Ministry of Education and Science of Mongolia

Project Description

The Mongolian Government, through its Ministry of Education and Science (MES) will implement an Education Sector Reform Project with the support from the World Bank. The Project Development Objective is to improve the quality of education for primary school children in Mongolia with particular emphasis on improving reading and math learning outcomes.

The proposed operation would support MES's Educational Quality Reform Program to help improve the quality of basic education for all Mongolian children. The project will improve student learning by creating a consistent results focus within the education system and strengthening the system's capacity to provide classroom-level support for teaching and learning. A national assessment system would be created, providing real-time feedback to teachers and administrators about learning levels; proven interventions to improve reading would be taken to national scale. The operation's interventions complement the existing interventions of Mongolia's development partners and will build capacity within the Ministry to sustain the interventions once the proposed project closes. The project activities would be consistent with Mongolia's stated intent to achieve the Millennium Development Goals by 2015 and transition to a knowledge-based economy by 2021. The project activities also closely align with the framework of the World Bank's Country Partnership Strategy and its call for stronger policy and implementation frameworks to provide more effective educational services.

The project comprises four components:

Component 1: Improving reading competencies and acquiring basic math skills (estimated cost: US\$7 million). The purpose of this component is to ensure that by the end of second grade of primary school, Mongolian students are able to read fluently and acquire basic numeracy and math skills (like oral counting, additions and subtractions and identification of missing numbers in a sequence). This purpose is to be achieved through the implementation of the following two sub-components.

Sub-component 1.1 would involve a scaling up of the existing READ program to achieve national coverage. Specific activities to be financed include the provision of books and

materials, creation of school libraries, a public reading campaign, the development of scientific and mathematics-focused children's books, content development for special needs children, including those with disability, and an impact evaluation/assessment.

Sub-component 1.2 will support the national rollout of Early Grade Reading and Mathematics Assessments (EGRA and EGMA) as well as the national assessment for 5th grade. With respect to EGRA and EGMA, the project will support: (i) the development and validation of the assessment instruments; (ii) the training of teachers in appropriately using these assessment instruments and interpreting results; (iii) the on-site monitoring and support on the correct use of these instruments; and (iv) the development of corrective and/or preventive policy and tailored-made interventions derived from the administration of these instruments by teachers in order to improve learning outcomes in reading and mathematics in the first two grades of primary schools in the entire country.

With respect to the rollout of the national assessment for fifth grade, the project will support: (i) strengthening the Education Evaluation Center to administer and analyze national assessments for Grades 5; (ii) developing and validating the standardized assessment test for fifth grade; (iii) providing training to school administrators and teachers in preparation for the nationwide administration of the national assessment test for fifth grade including: (iv) administering the assessment tests to fifth grade primary school students; (v) scoring and grading the assessment tests; (vi) data capturing and entry; (vii) developing and administering quality control mechanisms of the results; and (viii) using the results of the assessments to support system pedagogical and curricular improvement.

Component 2: Pre- and In-service Professional Development of Teachers (estimated cost: US\$3 million).

The purpose of this component is to upgrade teacher quality by helping teachers develop the appropriate tools to provide individualized support for all children improving their learning outcomes, in particular reading and mathematical skills for first and second graders. This purpose is to be achieved through the implementation of the following two sub-components.

Sub-component 2.1 will support primary education Teacher Training Colleges throughout the country. The project will support: (i) the provision of high quality teaching and learning equipment and materials especially associated to early grade reading and mathematics; (ii) the provision of in-service training to teacher trainers; and (iii) a review of the practicum programs for teacher trainees, in particular as they relate to the teaching and learning practices of early grade reading and mathematics. Both pre- and in-service training programs will develop: (a) sample scripts that would help teachers initiate children into reading, with a focus on phonemic awareness and print exposure; and (b)

teaching methods and materials to improve oral counting, rational counting, number recognition, comparison of quantity, number sequencing, mathematical reasoning and the operations of addition and subtraction, skills that have been shown to be highly predictive of later mathematical skills.

Sub-component 2.2 will support pedagogical in-service training for teachers and the improvement of academic leadership of school principals. The sub-component will finance the: (i) provision of pedagogical training to teachers especially concerning the use of early grade learning materials for reading and mathematics; (ii) provision of in-service training and hands-on support to school principals; and (iii) strengthening the capacity of and providing enabling support to district and provincial education officers, school principals and teachers.

Component 3: Implementation of a School Grants Program (estimated cost: US\$10 million). The purpose of this component is to scale up MES's "Talent Program" of school grants, currently being rolled out in 100 pilot schools, to the rest of the primary schools in the country. This component will provide about \$3,000 per school per grant for them to implement an approved school quality enhancement proposal. ds to be used for this purpose, while maintaining the principle of school-based planning.

Component 4: System Management, Monitoring and Evaluation (estimated cost: US\$5 million). The purpose of this component is to support the MES to effectively implement the project with the support of qualified TA. The TA will include: (i) financial management and procurement specialists attached to the office of the Project Director; and (ii) qualified consultants attached to the various working groups that have been established for the implementation of this project as indicated in the Implementation Arrangement Chapter of the PAD. This component will also finance the carrying out of an impact evaluation study to assess the effectiveness of the project in improving reading and mathematics learning outcomes in the first two grades of primary schools. The objectives of this component will be achieved through supporting the Department of Monitoring and Evaluation of the MES to integrate student-learning outcomes into tracking of learning trends, and supporting the capacity building of the MES in: (i) financial management and internal audit; and (ii) procurement.

Potential Impact on Indigenous People

The Project will bring significant social benefit to Mongolian people by improving the quality of education for primary school children. And the Project will be taken to national scale. Though largely an ethnically homogenous nation, with 90% of the population estimated to be of Khalkh Mongol origin, Mongolia is home to more than 10 ethnic minorities that have historically resided within current state boundaries. These ethnic minorities include Kazakh, Tsaatan, Tuva, Dukha, Chantuu, Khoton and others.

All groups are either the descendants of Mongolian nomadic tribes, or are groups of Turkic origin who have become Mongolised over time. The Khalkh make up the majority and comprise over 90% of the population.

According to the World Bank's OP/BP 4.10, the term ““Indigenous Peoples” is used in a generic sense to refer to a distinct, vulnerable, social and cultural group possessing the following characteristics in varying degrees:

- (a) self-identification as members of a distinct indigenous cultural group and recognition of this identity by others;
- (b) collective attachment to geographically distinct habitats or ancestral territories in the project area and to the natural resources in these habitats and territories⁷
- (c) customary cultural, economic, social, or political institutions that are separate from those of the dominant society and culture; and
- (d) an indigenous language, often different from the official language of the country or region.

Due to the nature of the project, it is not expected any significant negative impact to indigenous people. If well designed, the project will provide indigenous people with a unique opportunity in order to enhance their education quality. However, the risk remains on the project if implemented in the area which indigenous people present in. The project design might need to be tailored to fulfill the cultural related requirements/demands from related communities, for example, the sub-projects might need to be designed and implemented in local language. If not, indigenous people will be excluded from the project development. Therefore, this Indigenous People Planning Framework (IPPF) is prepared to: i) ensure ethnic minority groups can benefit from the project; ii) guide “free, prior, and informed consultation” with ethnic minority communities; and iii) ensure issues raised by ethnic minority communities are incorporated into subcomponent designs.

Legal Frameworks

This chapter describes relevant aspects of the policy and legal framework in Mongolia and the requirements of World Bank safeguard policies.

Local government

Local Government in Mongolia consists of 21 aimags, divided into 330 soums, which in turn divided into of 1,630 bags. The central body at all levels of local government is the Governor. The Governors are the representatives of the State and directly report to the respective higher-level Governors. The Governor of the aimag and city is proposed by the respective khurals and appointed by the Prime Minister.

The governor's office in each aimag consists of the following units in addition to Governor and Vice-Governor: State Administration Department; Legal Department; Production, Trade, Agriculture and Environmental Department; Financial and Economic Policy Department; Social Policy Department. In addition, there are numerous agencies under the Governor such as Environmental and Agricultural. Environmental agencies are staffed with 4-6 persons at the aimag level, in addition to the soum-level environmental inspectors and rangers. Analogously, soum Governor's Offices are limited to a maximum of 5 – 10 persons, such as: the Governor; Vice Governor; Head of Governor's Office;

Social Development Officer (education, health care); Agriculture and Environmental Officer; Social Care Officer (Poverty reduction, employment and social care); Operations Officer.

Local government functions are set out in the Law on Administrative and Territorial Units and Their Governance. In addition, there are at least 29 other laws containing 280 provisions on the functions of local authorities. The aimag and soum governors receive numerous orders, guidelines, and directives from the higher level Government, line Ministries and agencies. However, the implementation of these orders and directives is often limited by the availability of financial and human resources. Local administrative staff often lack the managerial and technical capability to design and implement appropriate service delivery and local development support programs.

Law on territorial and administrative unit (1992)

The Law on territorial and administrative unit prescribes the setup and function of local Government in Mongolia. Citizens' khurals are the basic decision-making bodies at the bagh, khoroo, soum, aimag levels, as well as in the capital, Ulaan Baatar. Aimag, capital, soum and district Citizens Representatives' Khurals are convened no less than twice per year. Bagh and khoroo khurals are convened at least three times per year. The governor sets the date for Citizens khurals and is responsible for chairing. At the soum and regional levels, the number of citizens' representatives in each khural ranges from 15 to 35, depending on the size of the population within the administrative area. In Ulaan Baatar, there are 40 members in the citizens' khural. Khural members at the soum, regional and Ulaan Baatar level are elected by popular vote for a period of four years. All Mongolian citizens over 18 years of age may participate in bagh/khoroo public khurals and the meeting considered as valid if one of four bagh households and one of twenty-three central soum /khoros households attended the meeting.

Social Welfare Law (2005)

The Social Protection and Welfare Law regulates the types of social welfare pensions, benefits and service available to Mongolian citizens and prescribes the functions and

structure of the social protection and welfare administration system. Social workers are designated at the soum and sub-regional level with the following responsibilities:

- To undertake a needs assessment of vulnerable groups and poor households and citizens(1) ;
- To identify households and citizens eligible for social welfare benefits; and
- To consult with and provide training to improve capacity of vulnerable social groups, including the poor and extremely poor.

Ethnic Minority Policies

There are no specific policies, laws or regulations relating to ethnic minority development. However, all ethnic groups benefit equal constitutional rights. The Constitution of Mongolia stipulates ***“no person shall be discriminated on the basis of ethnic origin, language, race, age, sex, social origin and status, property, occupation and post, religion, opinion, and education.”***

Social Assessment Plan

When Indigenous Peoples are present in, or have collective attachment to, the project area, the borrower undertakes a social assessment to evaluate the project’s potential positive and adverse effects on the Indigenous Peoples, and to examine project alternatives where adverse effects may be significant. The breadth, depth, and type of analysis required for the social assessment are proportional to the nature and scale of the proposed project’s potential effects on the Indigenous Peoples.

The social assessment includes the following elements, as needed:

- (a) A review, on a scale appropriate to the project, of the legal and institutional framework applicable to Indigenous Peoples.
- (b) Gathering of baseline information on the demographic, social, cultural, and political characteristics of the affected Indigenous Peoples’ communities, the land and territories that they have traditionally owned or customarily used or occupied, and the natural resources on which they depend.
- (c) Taking the review and baseline information into account, the identification of key project stakeholders and the elaboration of a culturally appropriate process for consulting with the Indigenous Peoples at each stage of project preparation and implementation.
- (d) An assessment, based on free, prior, and informed consultation, with the affected Indigenous Peoples’ communities, of the potential adverse and positive effects of the project. Critical to the determination of potential adverse impacts is an analysis of the

relative vulnerability of, and risks to, the affected Indigenous Peoples' communities given their distinct circumstances and close ties to land and natural resources, as well as their lack of access to opportunities relative to other social groups in the communities, regions, or national societies in which they live.

(e) The identification and evaluation, based on free, prior, and informed consultation with the affected Indigenous Peoples' communities, of measures necessary to avoid adverse effects, or if such measures are not feasible, the identification of measures to minimize, mitigate, or compensate for such effects, and to ensure that the Indigenous Peoples receive culturally appropriate benefits under the project.

Public Consultation

All affected ethnic minority groups will be included in the consultation process, which will be conducive to open and frank discussion without outside intervention. The consultation process should establish that the affected ethnic minorities:

- broadly support the project objectives
- are aware of the project benefits and find them to be culturally appropriate
- understand how they will participate during project implementation
- have had sufficient opportunity to identify their preference and constraints

The findings from the consultations should be incorporated (sub) project design, which should include all the applicable elements of an Indigenous Peoples Plan as specified in the World Bank Operational Policy 4.10. The design should be disclosed locally in an appropriate form and language(s).

Furthermore, the government at the central and local level will contribute to this overall process by highlighting indigenous minorities' participation in the project. They should also suggest potential areas where additional support or different kinds of support may be required.

Preparation of Indigenous Peoples Plan

On the basis of the social assessment and in consultation with the affected Indigenous Peoples' communities, the government will prepare an Indigenous Peoples Plan (IPP) (See Annex) that sets out the measures through which will ensure that (a) Indigenous Peoples affected by the project receive culturally appropriate social and economic benefits; and (b) when potential adverse effects on Indigenous Peoples are identified, those adverse effects are avoided, minimized, mitigated, or compensated for. When Indigenous Peoples are the sole or the overwhelming majority of direct sub-project beneficiaries, the elements of an IPP should be included in the overall project design, and a separate IPP will not be prepared.

Institutional Arrangement

Overall responsibility for the proposed project will be vested with the MES. Project implementation will be mainstreamed using the MES structure at the central and decentralized levels. Education departments and relevant government officials at Aimag (province) and Soum (village) levels and schools will be responsible for the activities executed at the decentralized level over the five-year project period. MES has experience with Bank-financed projects. It has successfully implemented a number of Bank-implemented projects in the education sector, including the current Global Partnership for Education Early Childhood Education Project, as well as the recently closed IDA-financed READ and the Education-for-All Fast Track Initiative Projects. Ministry officials are familiar with the proposed interventions, as most have already implemented under the current MES strategy on a pilot basis. They are also familiar with Bank procedures.

Monitoring and Reporting

The monitoring and reporting for the implementation of this IPPF is incorporated in the overall monitoring and reporting mechanism set for the project implementation.

All Social Assessment Reports and Indigenous People's Plans prepared under this IPPF will be submitted to the World Bank's team for review and clearance before the (sub) project implementation.

Disclosure

This IPPF will be disclosed locally in Mongolia. The prepared IPP under this IPPF will be disclosed locally in project area in an appropriate form and language(s) where indigenous people present in or have collective attachment to.

Annex

Preparation of Indigenous Peoples Plan(IPP)

1. The Indigenous Peoples Plan (IPP) is prepared in a flexible and pragmatic manner, and its level of detail varies depending on the specific project and the nature of effects to be addressed.
2. The IPP includes the following elements, as needed:
 - (a) A summary of the baseline information on indigenous people.
 - (b) A summary of the social assessment.
 - (c) A summary of results of the free, prior, and informed consultation with the affected Indigenous Peoples' communities that was carried out during project preparation and that led to broad community support for the project.
 - (d) A framework for ensuring free, prior, and informed consultation with the affected Indigenous Peoples' communities during project implementation.
 - (e) An action plan of measures to ensure that the Indigenous Peoples receive social and economic benefits that are culturally appropriate, including, if necessary, measures to enhance the capacity of the project implementing agencies.
 - (f) When potential adverse effects on Indigenous Peoples are identified, an appropriate action plan of measures to avoid, minimize, mitigate, or compensate for these adverse effects.
 - (g) The cost estimates and financing plan for the IPP.
 - (h) Accessible procedures appropriate to the project to address grievances by the affected Indigenous Peoples' communities arising from project implementation. When designing the grievance procedures, the borrower takes into account the availability of judicial recourse and customary dispute settlement mechanisms among the Indigenous Peoples.
 - (i) Mechanisms and benchmarks appropriate to the project for monitoring, evaluating, and reporting on the implementation of the IPP. The monitoring and evaluation mechanisms should include arrangements for the free, prior, and informed consultation with the affected Indigenous Peoples' communities.